

What to watch on diesel export restriction odds

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Legal risks will threaten Section 301 tariffs in 2027

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Maine is no longer a must-win for Democrats

What to watch on diesel export restriction odds. We continue to see proscriptive diesel export restrictions in early October as unlikely (40% odds, see [Export restrictions now unlikely in US response to diesel prices](#) , 27 September 2026), though this depends on diesel prices continuing their recent downward trend and on global supplies loosening as exports from the Middle East increase.

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The administration is still working on a voluntary agreement with refiners that lets them claim to have taken action without imposing limitations on markets; there is no clear enforcement mechanism for this type of agreement, however, and it is unlikely to have a major impact on export volumes or pricing.

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If additional volumes of diesel from the Middle East, India, or potentially EU strategic stockpile releases don't materialize in October or cannot be sustained, it will remove one of the key arguments opponents of a diesel export restriction have and make US action more likely.

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Diesel contract expiration this week was also viewed as a specific risk point by export restriction opponents—now that we are moving past that point, the administration may become more risk-tolerant, especially if price reductions stall.

Legal risks will threaten Section 301 tariffs in 2027. The Court of International Trade is holding a hearing today on a legal challenge to Section 301 tariffs on forced labor, which constitute the White House's primary tariff mechanism for the remainder of President Trump's term.

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This is familiar territory for the administration: The trade court, which handles only trade-related cases, ruled both of the administration's previous tariffs instruments—the International Emergency Economic Powers Act (IEEPA) and Section 122—illegal, and there's a significant chance they do so again for Section 301.

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The plaintiffs in the case are challenging the tariffs on numerous grounds, but particularly on the allegation that the US Trade Representative did not follow appropriate evidentiary and procedural standards in implementing the tariffs on a fast-tracked, nearly-global basis. Those kinds of procedural cases can be more difficult to predict at the Supreme Court level, due to their relative lack of partisan valence, so this is probably less of a slam-dunk win for challengers than the IEEPA case was.

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If the lower court does rule against the tariffs, they would still be likely to remain in place while litigation continues through the court system, as was the case with the IEEPA tariffs. It would likely take at least until the spring of 2027 for the Supreme Court to issue a ruling, but it could take much longer, depending on the timeline in the lower courts. An invalidation of the tariffs would have massive ramifications, likely larger than the IEEPA case; not only would the government owe refunds, but it would also be forced back to the increasingly sketchy drawing board on what legal authority it could use to reconstruct the tariff wall.

Maine is no longer a must-win for Democrats. With a month to go in the midterm elections, the Senate polling picture has settled into tiers, and it's clear that Maine—long thought to be the bulwark to any Democratic majority—probably isn't a necessity.

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Democrats need four flips to win the Senate, assuming they hold all of their own seats, and on current polling, those four flips don't include Maine. Democrats lead in North Carolina, Ohio, Texas, and Alaska by more than they do Maine (see table below).

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Democrats not clearly leading in Maine is somewhat unexpected: The state voted for Kamala Harris in 2024, and the ten-point nationwide swing left has sufficed to bring even Texas and Alaska into the Democratic column on current polling. But it's worth remembering that national swings are rarely uniform, and can be more pronounced in some regions than in others; and that candidate quality matters, and Senator Susan Collins (R-ME) still appears to be the electoral overperformer familiar from the 2014 and 2020 elections, while Democrat Troy Jackson looks to be an average candidate at best.

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From a strategic perspective, then, Maine looks like a nice-to-have, not a must-have. That means national Democrats could well lean harder into the Iowa and Alaska races, both in similarly small (and relatively cheap) media markets in the closing stretch of the campaign, leaving Jackson on his own.

Quote of the Day

"The biggest people in the world signed that and I signed it as president. And it really is a form of protection." - President Trump, sharing remarks after Monday's White House "Super Intelligence" Luncheon, joined by leaders of the artificial intelligence and semiconductor industries, who signed an industry compact. The compact voluntarily commits companies to internal and external review processes overseen by an industry board that, despite Trump saying the agreement is "morally binding," lacks hard enforcement mechanisms.

On the Radar

2 October: Last day Senate is in session before midterms

12-18 October: IMF and World Bank Annual Meetings

30-31 October: G20 Foreign Ministers' meeting

3 November: National midterm elections

18-19 November: APEC leaders meeting in China

11 December: Government funding runs out

14-15 December: G20 summit in Florida

10 January: US-China tariff truce expires

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